



Expert Report on Platform Regulation and Misinformation

Prepared for the Royal Commission
on Anti-Semitism and Social
Cohesion

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Background

I, Terry Flew of L6.16, A14 The Quadrangle, The University of Sydney NSW 2006 in the state of New South Wales, Professor of Digital Communications and Culture, Australian Research Council Laureate Fellow and Co-Director of the University of Sydney Centre for AI, Trust, and Governance, solemnly and sincerely state:

1. I am a researcher specialising in digital communications, media and technology, including policy and regulation.
2. I am a Fellow of the Australian Academy of the Humanities and a Fellow of the International Communications Association (ICA). I was President of the ICA from 2019 to 2020.
3. I was recently a Visiting Senior Fellow in the Department of Media and Communication at the London School of Economics.
4. I have been asked by a solicitor assisting the Royal Commission on Antisemitism and Social Cohesion (**Solicitor Assisting**) to be an independent expert witness. I have been provided with the Letters Patent from the Commonwealth and the states, and this is Appendix A of this Report.¹
5. I am aware of the facts deposed in this report from my own knowledge. Where I express opinions or conclusions in this report, unless otherwise indicated, I express those opinions and/or conclusions on the basis of my specialised knowledge and expertise based on my training and experience which I set out in this report.
6. I refer to documents exhibited to my report as Appendices to the main report. In each case, the particular document is produced and shown to me and marked as I have described at the time of making my report.
7. When I was first approached in this matter, I was provided by Solicitor Assisting with a copy of an Expert Witness Code of Conduct, published by the Federal Court of Australia (**Code of Conduct**). I was advised that where the Code of Conduct refers to the 'Court', I should take that for present purposes to be a reference to the 'Commission'. I was asked to read the Code of Conduct carefully. A copy of the Code of Conduct has been provided as Appendix B. In preparing this report, I have complied with the Code of Conduct, and I agree to be bound by it.

Qualifications and experience

8. I currently occupy the following roles:
 - a) I am a Professor of Digital Communications and Culture in the Faculty of Arts and Social Sciences at the University of Sydney, where my research deals with digital media, platform governance, media economics, and the political economy of global media.
 - b) I also currently hold an Australian Research Council Laureate Fellowship. Awarded in 2023, the Laureate is a 5-year project on 'Mediated Trust: Ideas, Interests, Institutions, Futures'. It addresses questions pertaining to the decline in trust in social institutions and its relationship to media in

¹ 'Terms of Reference | Royal Commission on Antisemitism and Social Cohesion' <<https://asc.royalcommission.gov.au/about/terms-reference>>.

general, and digital media in particular. The Laureate commenced in 2024 and will conclude in 2029.

- c) I am also Co-Director of the Centre for Artificial Intelligence, Trust and Governance (CAITG). Established in 2023, CAITG is a flagship Centre at the University of Sydney for research and innovation examining the complexities of emergent AI technologies from a socio-technical perspective.
 - d) I am a Fellow of the Australian Academy of the Humanities, which is an independent, not-for-profit organisation with a Fellowship of over 730 humanities leaders. Our Academy is one of Australia's five Learned Academies – independent organisations established to encourage excellence in their respective fields and to provide expertise and advice at public, institutional and government levels.
 - e) I am a Fellow of the International Communications Association (ICA), which is the world's oldest, largest, and most prestigious association for communication researchers. I was ICA President from 2019-2020 and served on its Executive Board and Executive Committee.
 - f) In 2026, I was a Visiting Senior Fellow of the Department of Media and Communications at the London School of Economics and Political Science (LSE).
 - g) I have advised organisations including the OECD, Special Broadcasting Service, Australian Communications and Media Authority, Telstra, Meta, Fairfax Media, Cisco Systems, Arts Queensland, New South Wales Government Department of Creative Industries, Tourism, Hospitality and Sports, and Brisbane City Council.
 - h) I have held Honorary academic roles at City, University of London, George Washington University, University of Nottingham, Ningbo, and Communications University of China.
 - i) In 2011-12, I chaired the Australian Law Reform Commission's Review of the National Classification Scheme.
9. I am currently also a member of the following organisations:
- a) the Australian Academy of the Humanities;
 - b) the International Communications Association;
 - c) the International Association for Media and Communications Research;
 - d) the Australian and Aotearoa New Zealand Communications Association;
 - e) the International Media Management Academic Association.
10. I graduated from the University of Sydney with a Bachelor of Economics (Honours) in 1986. I obtained a Master of Economics degree from the University of Sydney in 1991. I was awarded a PhD by Griffith University in 2002. My thesis was on the regulation of Australian broadcasting with particular reference to local content requirements.

Instructions

I was asked by Solicitor Assisting to prepare an expert report, which addresses the following issues:

Foundational Concepts

1. What is digital platform regulation, and what key issues does it address?
2. What is meant by the "platformisation" of communications?
3. Please provide an overview of "mediated trust", and why it is significant to digital communication environments.

Platform Moderation & Regulatory Design

4. What are the main models of platform governance for overseeing digital platforms (including, among others, self-regulation, co-regulation and direct state regulation), and what are their key features, advantages and limitations (with a particular focus on the application of those governance strategies to moderation of harmful content online)?
5. What operational, structural and technological constraints affect a platform's ability to moderate harmful content consistently and at scale, and to what extent is timely and effective moderation realistically achievable?
6. In light of these challenges, what considerations should inform the design of regulatory frameworks to best address the proliferation of harmful content online, and what are the strengths and limitations of available regulatory tools?

International Regulatory Models & Effectiveness

7. What international regulatory models and/or legislation governing digital platforms are most effective in addressing proliferation of harmful content online, and why?
8. What lessons can be drawn from those regulatory or legislative frameworks regarding their effectiveness and suitability for the Australian context?
9. What evidence exists on whether such regulatory or legislative frameworks improve platform accountability or reduce harmful content, and how is it measured?

Hostile misinformation

10. What is "hostile misinformation" and how do platform features contribute to the dissemination and amplification of such content?
11. What challenges arise in identifying and responding to hostile misinformation, particularly in contexts involving political speech, free expression or generative AI (**Gen AI**)?
12. What governance approaches are most effective in addressing the spread of hostile misinformation online?

Antisemitic & Harmful Content

13. What specific challenges do platforms face in identifying and moderating antisemitic conduct, and are there particular characteristics of this conduct that make it more or less difficult than other forms of harmful conduct?

14. What are the strengths and limitations of automated moderation tools in this context?
15. What role should human moderators play in addressing nuanced or context-dependent harmful content?
16. What indicators should be used to assess whether moderation systems are effective?

Generative Artificial Intelligence

17. What challenges does Gen AI pose for platform governance, specifically to the dissemination and prevention of harmful content?
 18. To what extent are existing regulatory frameworks adequate to address the risks posed by AI-generated content?
 19. What regulatory safeguards would assist in minimising the risk of Gen AI facilitating the creation, amplification or dissemination of harmful or antisemitic content?
11. In preparing this Expert Report, I acknowledge the support of the Centre for AI, Trust and Governance at The University of Sydney. I note that I received feedback from Dr. Robert Nicholls, Dr. Wenjia Tang and Dr. Louisa Shen on an earlier draft of the proposal.
 12. I also acknowledge that AI platform Google Gemini was used for background research purposes in the development of this report. All writing and analysis were undertaken by myself as the sole author.
 13. Exhibited to this report and marked 'Letter of Instruction Professor Terry Flew' is Annexure A to the letter from Solicitor Assisting.

Relevant Publications

I am the author of 17 books, 78 book chapters, 17 edited journal special issues, 137 refereed academic journal articles, 11 research monographs and 12 commissioned reports. I have undertaken keynote presentations in 20 countries and at 24 Australian universities. For reasons of brevity, I have included below publications which are directly relevant to this Report. I can provide my full academic CV on request.

Books

Flew, T., Stepnik, A. & Koskie T. (eds.), 2026, *Valuing News: Digital Platforms and Journalism Futures*, Cham, Springer.
 Flew, T., Holt, J. & Thomas, J. (eds.), 2022, *The SAGE Handbook of the Digital Media Economy*, London, SAGE.
 Flew, T. and Martin, F.R. (eds.), 2022, *Digital Platform Regulation: Global Perspectives on Internet Governance*, Basingstoke, Palgrave.
 Flew, T., 2021, *Regulating Platforms*, Polity, Cambridge. Translated into Chinese by Communication University of China Press.

Book Chapters

Flew, T., 2026 (forthcoming), 'Artificial Intelligence, Digital Platforms and the Creative Industries', in D. Y. Jin (ed.), *Routledge Handbook of AI and Digital Platform Studies*. London: Routledge.
 Flew, T., Hutchinson, J. & Tang, W., 2025, 'Artificial Intelligence and the Creative Industries', in L.-E. Dubois, L. Simon & B. Szostak (eds.), *DeGruyter Handbook of Creative Industries*, DeGruyter, pp. 351-363.

Refereed Journal Articles

Flew, T. and Yao, Y., 2026 'Public trust in the AI era: A dialogue with Terry Flew', *Communications and the Public* 11(1), pp. 53-60.
 Park, S., Flew, T., Fisher, C., Nardi, G., Stepnik, A. and Makin, B., 2026 'Back to the Future: consumer preferences for bundled news', *Journal of Media Business Studies* <https://doi.org/10.1080/16522354.2026.2679885>.
 Flew, T. and Tang, W., 2026 'Between Technopolitics and Geopolitics: Artificial Intelligence and Middle-Power Governance', *Journal of Digital Media and Policy* 17(1), pp. 13-33.
 Flew, T., 2024, 'Mediated Trust, the Internet, and Artificial Intelligence: Ideas, Interests, Institutions, Futures', *Policy & Internet*, 16(2), pp. 443-457.

1. Foundational Concepts

1.1 What is a Digital Platform?

Discussions concerning Internet regulation or the regulation of social media are often really discussions about the regulation of digital platforms. The term 'platform' has several meanings, including:

- an architectural meaning of a raised site on which people and things can be placed for a specific purpose (e.g. railway platform, diving platform, offshore drilling platform).
- a geological meaning of a base layer on top of which other things emerge or can be created (e.g. the Continental Shelf).
- a figurative meaning where a platform is a foundation for advancement (e.g. in football, a strong defence can enable more effective attack).
- a political meaning where a platform is both a forum for expression (e.g. a statement of principles) and a declared party policy (e.g. a platform of low taxes, The Labor Party platform).

In computing, a platform is a distinct computing system that provides a specific combination of hardware and software such that the development of software and applications unique to the system is based on that combination. The two major computing platforms are the Microsoft Windows operating system and the Apple Mac OS. The digital and mobile app platform environment is dominated by Apple and Google. Third-party developers work with large platform providers such as Google, Microsoft, Apple and Meta to make software and apps available through their platforms.

Constantinides et al. define a digital platform as 'a set of digital resources – including services and content – that enable value-creating interactions between external producers and consumers'². The platform both enables and regulates 'core interactions between platform participants, including consumers, producers, and third-party actors', through a combination of 'architectural and governance rules that seek to balance platform control with the necessary incentives for platform participants to engage with the platform and generate value for one another'.³

Digital platforms are structurally separate from digital infrastructure, with the latter constituting the computing and network resources that allow multiple stakeholders to orchestrate their service and content needs. From this perspective, the Internet is digital infrastructure, while companies such as Apple, Google, Microsoft, and Facebook are digital platform providers upon whose platforms sits a layer of applications and services that provide digital content (games, news, entertainment, etc.) to consumers.

Platforms are therefore nested in a series of layers of the internet environment, akin to the sedimentary layers of rocks that geologists refer to in their definition of platforms. The relationship between infrastructures, platforms, applications & services, and content in this framework is shown below.

² Panos Constantinides, Ola Henfridsson and Geoffrey Parker, 'Platforms and Infrastructures in the Digital Age' (2018) 29(2) *Information Systems Research* 381.

³ Ibid., p. 381.

Figure 1
Platforms and the Internet Stack

CONTENT Activities that are produced by humans (e.g. films, games, music, journalism) and designed to be consumed by end-users, that sit on particular applications and platforms
APPLICATIONS & SERVICES Computing software designed to carry out specific tasks or to deliver specific services
PLATFORMS Digital environments through which a piece of software is executed, including hardware operating systems, Web browsers, and associated application programming interfaces
INFRASTRUCTURE Foundational services with drive information technology (e.g. Internet cabling, fixed broadband, cellular networks, communications satellites, WiFi networks)

Digital platforms are often described as an example of networked industries. Networked industries are those which demonstrate *network effects*.⁴ Network effects occur when the value of a service increases as more people use it. An example is a telecommunications network, where, according to Metcalfe's Law, the value of the telecommunications network is proportional to the square of the number of users.⁵ Platforms have network effects on at least two 'sides' of a market. For example, Google provides search services at no charge to users, provided that they tolerate advertising. Google sells advertising inventory to businesses that offer products aligned with the search term. There are network effects for both users and businesses.⁶

1.2 The Platformisation of Communication

The picture of platforms presented in Figure 1 has come to require further refinement for three reasons. First, the term 'platform' has increasingly come to be understood in terms of a particular digital business model. This business model is reliant upon the collection of data about users—their interests, preferences, tastes and behaviors—which can then be made available to third parties such as content developers and advertisers as aggregated consumer data and metrics that can enable the further development of applications and services on the platform.

The algorithmic processes through which automated instructions transform user inputs into desired outputs and connect users to content, products, and advertisements is also a core element of platforms. The ownership structures and business models of platform companies vary, but the 'free' model, whereby users trade convenient access to content and services for their personal information, converted to data, is a very common one.⁷

⁴ Geoffrey Parker and Marshall Van Alstyne, 'Two-Sided Network Effects: A Theory of Information Product Design' (2005) 51(10) *Management Science* 1494.

⁵ Strictly, it is proportional to $n \times (n - 1) = n^2 - n$ for n users of a network. See C Shapiro and H R Varian, *Information Rules: A Strategic Guide to the Network Economy* (Harvard Business School Press, 1999), p. 184.

⁶ See, generally, DS Evans and R Schmalensee, *Matchmakers: The New Economics of Multisided Platforms* (Harvard Business Review Press, 2016).

⁷ Jose van Dijck, Thomas Poell and Martijn de Waal, *The Platform Society: Public Values in a Connective World* (Oxford University Press, 2018); Geoffrey Parker, Marshall Van Alstyne and Paul Sangeet, *Platform Revolution: How Networked Markets Are Transforming the Economy* (W.W. Norton & Co., 2016).

The second major refinement is that platform companies are themselves service providers. If we think of Google – which now sits within a parent company Alphabet – its search engine platform sits alongside its video sharing service (YouTube), its AI service (Galaxy), services such as Google Drive and Gmail, and much more. The distinction between platform and service within Google is blurred to the point of becoming insignificant. All of the major tech companies, such as Microsoft, Amazon, Apple, Meta and Tesla, have an equivalent blurring of their platform and service dimensions, to the point where, as with Amazon and Uber, the platform is the service.

Finally, platforms are themselves now infrastructure. The early history of the Internet involved the creation of the World Wide Web as a common, non-proprietary system that all content providers could access on the basis of shared protocols.⁸ However, major platforms such as those owned by Google, Meta and Apple are themselves now the infrastructure of digital media. Plantin et al. have discussed the mechanisms through which platforms become infrastructure ... as ... infrastructures become platformised'.⁹

This is the process referred to as *platformisation*.¹⁰ From the 2010s onward, Platforms and platform businesses became increasingly central to curating the open web and enabling participation and engagement at scale among ever-growing sections of the global population through social media and associated tools for online conversation and knowledge sharing.¹¹ The participatory practices enabled by digital technologies are mediated through a political economy of platforms, centered around the capturing and circulating of data and the resultant commodification of interactions, as raw materials for global advertising and information markets.¹²

The network effects of 'winner takes most' digital markets have generated concentrations of ownership and control, and in particular have given platforms increasingly greater communications power than traditional news media publishers.¹³ The largest digital platforms are now best understood as *platform ecosystems*, or as interconnected clusters of content, services, applications, and user communities that exist within a single corporate entity, which is in turn competes with other corporate platform ecosystems for content, user attention, access to consumer data, and advertising revenue.

A case study of how platformization works in practice can be seen with the relationship between digital platforms Google and Meta and news media publishers. The Australian Competition and Consumer Commission (ACCC) observed, in its 2019 *Digital Platforms Inquiry: Final Report*, that there is a relationship of *asymmetrical interdependence* between the news companies and the platforms.¹⁴

⁸ Tim Berners-Lee and Stephen Witt, *This Is for Everyone: The Unfinished Story of the World Wide Web* (Macmillan, 2025).

⁹ Jean-Christophe Plantin et al, 'Infrastructure Studies Meets Platform Studies in the Age of Google and Facebook' (2018) 20(1) *New Media & Society* 293.

¹⁰ van Dijck, Poell and de Waal (n 7).

¹¹ Tarleton Gillespie, *Custodians of the Internet: Platforms, Content Moderation, and the Hidden Decisions That Shape Social Media* (Harvard University Press, 2018).

¹² Nick Couldry and Ulises A Mejias, *The Costs of Connection: How Data Is Colonizing Human Life and Appropriating It for Capitalism* (Stanford University Press, 2019).

¹³ Patrick Barwise and Leo Watkins, "The Evolution of Digital Dominance: How and Why We Got to GAFA," in *Digital Dominance: The Power of Google, Amazon, Facebook, and Apple* (Oxford University Press, 2018); Terry Flew and Cameron McTernan, "How Do Platforms Matter? Media Power, Platform Power and the Digital Domination of Australian Media," *International Communications Gazette* 88, nos. 1–2 (2026): 127–42.

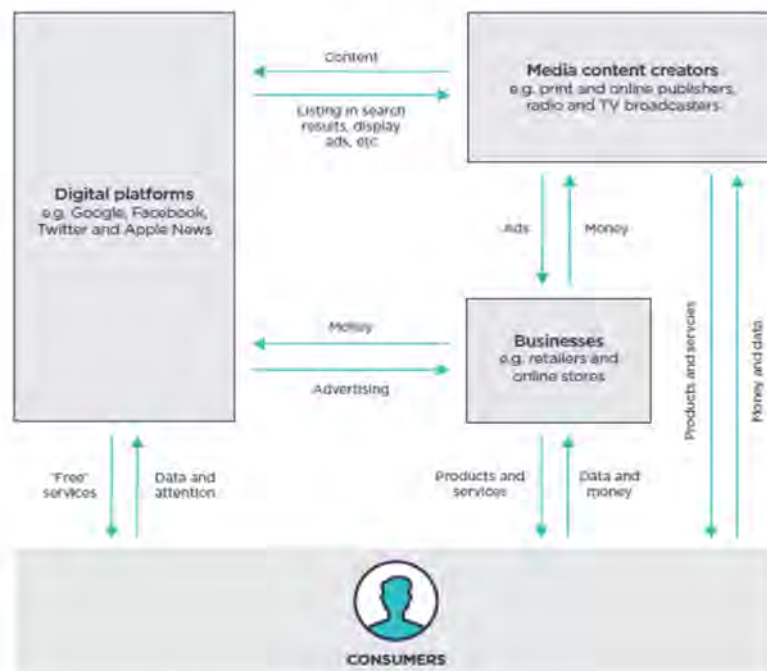
¹⁴ Australian Competition & Consumer Commission, *Digital Platforms Inquiry: Final Report* (ACCC, 2019).

News outlets are increasingly reliant upon online distribution of their content through search and social media, yet also directly compete with the platforms for digital advertising.

Digital platforms operate in multisided markets, where they interact with advertisers, users and publishers, and hence have far greater access to consumer data than the news publishers, while not directly contributing to the costs of producing news content.¹⁵ The ACCC's report provided the basis for the News Media Bargaining Code – now the News Media Bargaining Incentive – which aimed to redress this market inequality by requiring the platform companies to contribute to the costs of producing news.

How the multisided markets model works for the news media industry is shown below.

Figure 2
Digital Platforms and Multisided Markets for News



Source: Australian Competition & Consumer Commission, p. 61.

1.3 Declining Trust and Social Cohesion in Australia

There is considerable evidence of declining trust in Australian political and social institutions, with associated adverse implications for social cohesion.

¹⁵ Terry Flew et al, 'Digital Platforms and the Future of News: Regulating Publisher-Platform Relations in Australia and Canada' (2023) 27(16) *Information, Communication & Society* 2727.

The Scanlon Foundation Index of Social Cohesion (historically known as the Scanlon-Monash Index, or SMI) is Australia's benchmark framework for measuring the strength, resilience, and shifts in social cohesion. Established in 2007, the Index is published annually as part of the Mapping Social Cohesion report. Its primary goal is to provide an independent empirical measure tracker of how Australians view their lives, their government, and multicultural society.

The Index uses factor analysis to distill complex public attitudes into a single metric. It draws upon a baseline reference score of 100, and tracks over 100 separate indicators across five key domains:

Table 1
Measures of Social Cohesion in Scanlon Foundation Index

Domain	What It Measures	Example Survey Questions / Metrics
1. Belonging	Shared identity, national pride, and local connectedness.	Pride in the Australian way of life; feeling a sense of belonging in one's local neighborhood.
2. Worth	Emotional, social, and material well-being.	Personal happiness; financial satisfaction and optimism or pessimism about the future.
3. Social Inclusion & Justice	Perceptions of fairness, equity, and institutional reliability.	Trust in the federal government; belief that the gap between rich and poor is fair or unfair.
4. Participation	Engagement in civic, political, and voluntary community work.	Voting behavior; participation in community groups, protests, or local volunteer networks.
5. Acceptance & Rejection	Attitudes toward cultural diversity and experiences of marginalization.	Support for multiculturalism; personal experiences of discrimination or racism based on background.

The Scanlon Foundation Index identified a fall in the social cohesion index from 88 in 2021 to 78 in 2024. The related measure of whether people felt a sense of belonging in Australia declined from 88 in 2020 to 77 in 2024.¹⁶

The Australian National University (ANU) National Security College found in its study, *No Worries? Australian Attitudes to National Security, Risk and Resilience*, which was released in March 2026, that public worry about national security jumped from a large minority (42%) in November 2024 to a significant majority (64%) by

¹⁶ James O'Donnell, Alice Falkiner and Katarzyna Szachna, *Mapping Social Cohesion: Social Connections through Troubled Times* (Scanlon Foundation Research Institute, 2025).

February 2026.¹⁷ This study, which involved 20,000 survey respondents and multiple focus groups and interviews, also found that while older Australians generally report higher concerns, the sharpest increase in anxiety occurred in the 18–24 age cohort, rising from 22% to 55% in just 15 months. The highest levels of concern were about AI-enabled threats, threats to critical infrastructure, severe economic crisis, and deliberately false information. Concern about terrorism as a 'major' or 'moderate' threat rose from 55% in late 2024 to 72% in February 2026, following the mass shootings targeted at the Jewish community festival at Bondi Beach on December 14, 2025.

According to comparative trust studies such as the Edelman Trust Barometer, Australia has a middling level of trust in its institutions. The 2026 Edelman survey found that Australia had an overall Trust Index score of 54 percent, which ranked 14th of the 28 countries surveyed.¹⁸ Overall levels of trust in business (59%), government (52%) and NGOs (59%) also tended towards the middle rank, with there being a significantly lower level of trust in media in Australia (45%) than the global average (54%).

1.4 The Nature of Mediated Trust

There are many definitions of trust. It has variously been described as a belief, an expectation, an attitude, an intention, a behaviour and a personality trait.¹⁹ There is also a distinction in the literature between personal trust, or perceptions of individual trustworthiness, and social trust, or confidence in expectation about the achievement of particular outcomes in the absence of certainty and the risk of betrayal.²⁰ A useful two-part definition of trust is provided by the historian Geoffrey Hosking as:

1. Attachment to a person, collective of persons or institution, based on the well-founded but not certain expectation that he/she/they will act for my good.
2. The expectation, based on good but less than perfect evidence, that events will turn out in a way not harmful to me.²¹

The question of how much media impacts upon overall levels of social trust is a much-debated topic, particularly in light of the rise of social media as an alternative source of news and information to traditional news media publishers.²² In my own work, I have developed the concept of *mediated trust* as a way of addressing this question.²³ Noting that trust is a 'soft' concept whose presence and significance is notoriously hard to empirically measure²⁴, and that the impact of media intersects with other technological and societal factors, I have proposed that mediated trust can be understood as arising at the intersection of communication, technologies and institutions.

¹⁷ Rory Medcalf et al, *No Worries? Australian Attitudes to National Security, Risk and Resilience* (Australian National University National Security College, March 2026).

¹⁸ Edelman Trust Institute, *2026 Edelman Trust Barometer - Global Report: Trust Amid Insularity* (Edelman, 2026).

¹⁹ Diego Gambetta, 'Can We Trust Trust?' in *Trust: Making and Breaking Cooperative Relations* (Basil Blackwell, 1988) 213.

²⁰ Niklas Luhmann, 'Familiarity, Confidence, Trust: Problems and Alternatives' in *Trust: Making and Breaking Cooperative Relations* (Basil Blackwell, 1988) 94.

²¹ Geoffrey A Hosking, *Trust: A History* (Oxford University Press, 2014), p. 28.

²² Nic Newman et al., *Reuters Institute Digital News Report 2025* (Reuters Institute for the Study of Journalism, 2025),

²³ Terry Flew, 'Mediated Trust, the Internet, and Artificial Intelligence: Ideas, Interests, Institutions, Futures' (2024) 16(2) *Policy & Internet* 443.

²⁴ Bernd Blöbaum (n 22); Piotr Sztompka, *Trust: A Sociological Theory* (Cambridge University Press, 1999).

The relationship of individuals to institutions, and institutions to society, is mediated through communication, particularly under conditions of modernity. Nick Couldry has made the point that 'the relationship of media (as ways of organising communication) and the possibility of society is so basic to modernity that it is often hard to see ... communications have always played [a central role] in the emergence of the coordinated spaces of exchange and interaction intrinsic to modernity'.²⁵ At the same time, communications as a social practice is mediated through different forms of technology, and produced and disseminated through particular social and economic institutions. For example, interactions through social media are enabled through networked digital technologies but also managed and curated through privately-owned global companies which use algorithms, machine learning and big data to direct such communication towards commercially oriented goals.

2. Platform Moderation and Regulatory Design

2.1 Platform Regulation and Governance

Platform regulation can be understood at three levels. The first level is constituted by legislation, and the laws that are put in place through policies enacted and implemented by Parliaments. The second level is that of regulation, or the processes, institutions and agencies put in place by governments to oversee the implementation of policies and the enforcement of laws. Arie Freiberg defines regulation as:

An intentional form of intervention by public sector actors in the economic and social activities of a target population with the aim of achieving a public policy objective and/or set of objectives. The intervention can be direct and/or indirect, the activities can be economic and/or non-economic, and the regulatee may be a public or private sector actor.²⁶

Freiberg defines regulation as activity by public sector actors in pursuit of objectives set by governments in order to distinguish regulation from governance. Governance derives from the Latin verb *gubernare* ('to steer'), and there has been what has been termed a 'governance revolution in policy studies and social theory since the 1990s.'²⁷ Marc Bevir has described governance in these terms:

Governance draws attention to those complex processes and interactions that constitute patterns of rule. It replaces a focus on the formal institutions of states and government with recognition of the diverse activities that often blur the boundaries of states and society. Governance ... highlights phenomena that are *hybrid* and *multijurisdictional* with *plural stakeholders* who come together in *networks*.²⁸

From the inception of the Internet, it has been governance rather than government regulation that has been the dominant mode of regulation of digital technologies. Governments were largely engaged with regulation at the level of infrastructure provision and, more recently, antitrust and competition law, content

²⁵ Nick Couldry, *Media: Why It Matters* (Polity, 2020).

²⁶ Arie Freiberg, *Regulation in Australia* (Federation Press, 2017).p. 2.

²⁷ Terry Flew, *Regulating Platforms* (Polity, 2021). pp. 138-141.

²⁸ Mark Bevir, 'Governance as Theory, Practice and Dilemma' in *The SAGE Handbook of Governance* (SAGE, 2011) 1., p. 2.

regulation has primarily been a matter either for tech companies themselves or for some form of governance that also engages non-government organizations (NGOs).

Forms of governance that can be agile, networked and decentralized have been seen as being consistent with fast-changing digital technologies. This has been referred to as *nodal governance* where “old” institutions of traditional state governance are no longer working very well ... [as] social systems have become too complex, diverse and particular for centralized, top-down governance to manage.²⁹ A decentered and networked approach to governance has also sat well with the dominant thinking in the tech sector itself, where there are strong histories of stakeholder interaction, civil society engagement, suspicion of top-down ‘grant plans’, mistrust of the motivations of government, and a preference for bottom-up, iterative processes undertaken by multiple actors (hacking, crowdsourcing etc.).³⁰

2.2 Self-Regulation, Co-Regulation and Government Regulation

Regulation is typically associated with measures undertaken by public agencies under instruction from governments to achieve designated public policy objectives. These may include achieving collective goals, providing public goods, dealing with market failure and third-party externalities, information asymmetry, and addressing the potential of products, services and technologies to generate social harms and adversely affect trust, or to better balance risks with opportunities.³¹

Government regulation is not the only form of regulation. There are various forms of private regulation, defined as:

The means by which private actors seek to change the behaviour of others for their own purposes, or mechanisms by which a non-state actor seeks to comply with norms, standards or laws imposed by others. Private regulation is not dependent upon public resources and is not dependent upon a public body for implementation or enforcement.³²

The most widely discussed form of private regulation is *self-regulation*, whereby an organization of an industry body funded by its members sets rules, protocols, standards, codes of conduct and other measures to govern their own conduct. The case for self-regulation is that such bodies are more likely to have the relevant knowledge and technical expertise than external regulators, regulatory obligations can be more effectively enacted from within, and that there is greater efficiency in enacting such regulations and they can be more easily adjusted to changes in the external environment.³³

Arguments against self-regulation include perceived lack of accountability, lack of procedural fairness, a sense among the public that the regulators lack sufficient critical distance from regulates, and whether the regulates have the

²⁹ Clifford Shearing et al., “Changes in Governance: A Cross-Disciplinary Review of Current Scholarship,” *Akron Law Review* 41, no. 1 (2008), p. 6.

³⁰ Alberto Lusoli and Fred Turner, “‘It’s an Ongoing Bromance’: Counterculture and Cyberculture in Silicon Valley—An Interview with Fred Turner” (2020) 30(2) *Journal of Management Inquiry* 235.

³¹ Freiberg (n 26), pp. 42-57.

³² *Ibid.*, p. 105.

³³ Robert Baldwin, Martin Cave and Martin Lodge, *Understanding Regulation: Theory, Strategy, and Practice* (Oxford University Press, 2nd edn, 2012), pp. 139-142.

capacity to withdraw from the regulating entity should they be dissatisfied with its adjudications.³⁴

Industry self-regulation has been more common than external regulation with regards to the Internet and social media. At the same time, there has been growing criticism worldwide of tech industry self-regulation, as its responses to issues of public concern have been deemed inadequate by governments and the wider community. This is part of what has been known as *the 'techlash'*.³⁵

In response to these challenges, some tech companies have developed new forms of *co-regulation*, often acting in conjunction with civil society organizations.³⁶ The most notable of these has been the Facebook Oversight Board (now the Oversight Board), established in 2020 by Meta (then Facebook) to adjudicate on content moderation decisions made on the company's platforms, through a structurally independent third-party entity funded by the company but involving leading figures internationally, who deliberate and make decisions that are binding upon Facebook and set precedent for subsequent cases.³⁷

2.3 Regulation of Harmful Online Content

Content moderation is both one of the most important and one of the most contentious aspects of Internet and social media regulation. It goes to the heart of questions about the balance between competing principles of maximizing freedom of expression and minimizing censorship on the one hand and having effective legal sanctions and practical measures to deal with content which discriminates against and vilifies people and groups on the basis of race, ethnicity, gender, religion, nationality, sexual orientation and disability on the other.

Regulation of harmful – or potentially harmful – online content has been considered important on social media for four reasons:

1. As one of the key contemporary sites for social interaction, digital platforms and social media sites should not promote speech that is illegal or which contravenes accepted social norms.³⁸
2. Various forms of legislation exist to prohibit hate speech and forms of conduct which promotes mistrust and hostility in society and negates the human dignity of targeted individuals and groups. Social media platforms that fail to address such concerns may be in breach of the law.
3. Online hate speech can have real world consequences. As Parekh has observed, if hate speech fosters intimidation, discrimination, contempt and prejudice, its victims 'find it difficult not only to participate in the collective

³⁴ Ibid., pp. 142-144.

³⁵ See e.g. Zeynep Tufekci, 'Why Zuckerberg's 14-Year Apology Tour Hasn't Fixed Facebook' (6 April 2018) <<https://www.wired.com/story/why-zuckerberg-15-year-apology-tour-hasnt-fixed-facebook/>>; Nicolas Suzor, *Lawless: The Secret Rules That Govern Our Digital Lives* (Cambridge University Press, 2019); Robert G Picard and Victor Pickard, *Essential Principles for Contemporary Media and Communications Policymaking* (University of Oxford, 2017).

³⁶ Robert Gorwa, 'Regulating Them Softly' in *Models for Platform Governance* (Center for International Governance Innovation, 2019) 39; Robert Gorwa, 'What Is Platform Governance?' (2019) 22(6) *Information, Communication & Society* 854; Victoria Nash and Mark Bunting, 'A Policy Playbook for Platforms' (2018) 46(2) *Intermedia* 30.

³⁷ Terry Flew, *Regulating Platforms* (Polity Press, 2021), pp. 150-151.

³⁸ The term 'speech' is used in a broad sense here, to incorporate audio, video, animated and other content created by and for humans online, as well as the written word.

life, but also to lead autonomous and fulfilling personal lives ... the target group is unable to relax and lead a life without fear and harassment.’³⁹

4. Social media companies have a commercial interest in content moderation. Users, advertisers and other stakeholders have expectations about how a site is curated and can choose not to engage with sites that have a reputation for disseminating online hate speech.

At the same time, content moderation policies have had significant criticisms:

1. The Internet has been seen as a technology that can maximize freedom of expression and thus open up the public sphere to a greater diversity of opinion. In the *Reno v. ACLU* case in the Philadelphia District Court, which struck down the Clinton Administration's *Communications Decency Act* 1996, Justice Dalzell observed that ‘as the most participatory form of mass speech yet developed, the internet deserves the highest protection from governmental intrusion.’⁴⁰
2. The distinction between digital platforms and traditional media was enshrined in Section 230 of the *Communications Decency Act* 1996, which states that ‘No provider or user of an interactive computer service shall be treated as the publisher or speaker of any information provided by another information content provider.’ What is known as the platform/publisher distinction shields platform providers from legal liability for content created and posted by their users on their sites, while also allowing platforms to moderate content on their sites without being considered ‘publishers’, and thus legally responsible for all other content on their sites.
3. The question of who decides what content can be considered harmful, and the criteria on which decisions are made, has long been an issue with content moderation. There is also the question of rights to appeal or redress for decisions to block or otherwise inhibit the circulation of individual items of content or particular users.
4. The related question of what constitutes harmful speech is also the subject of ongoing debate. In particular, there is the question of ‘legal but harmful’ speech, which refers to content that does not cross the high legal threshold into criminality or actionable civil wrong (like direct incitement to violence, child exploitation, or defamation), but is widely recognized as causing psychological, social, or physical harm.

3. Moderating Harmful Online Content

3.1 Challenges of Moderating Harmful Online Content

Moderating harmful online content is highly complex in operational, technical and ethical terms. Achieving content moderation at scale is an ongoing challenge which is not simply solved wither through greater use of algorithms or employment of more content moderators. Among the challenges of content moderation to address content are:

1. Scale and velocity: the volume of content uploaded to the Internet every second is phenomenal. It is estimated that 6 to 8 hours of new video content

³⁹ Bihkhu Parekh, ‘Is There a Case for Banning Hate Speech?’ in *The Content and Context of Hate Speech: Rethinking Regulation and Responses* (Cambridge University Press, 2012) 39.

⁴⁰ Mike Godwin, *Cyber-Rights: Defending Free Speech in the Digital Age* (Random House, 1998), p. 289.

is uploaded to YouTube every second, as well as 1,000 Instagram photos and 6,000 posts on X. This creates a 'firehose effect' where human review teams cannot address all items of content in real time.

2. Virality: harmful content often goes viral within minutes, meaning that by the time a post is flagged, reviewed, and removed, the vast majority of its real-world harm and subsequent downloading or sharing has already occurred.
3. Coded language: online vocabularies are continually adapted in order to evade automated filters that are triggered by the use of certain words.
4. Context: a particular item of content may be benign in one context but potentially harmful in another.
5. Lack of universal standards: harm can be a subjective content, particularly for content that is 'harmful but legal', and digital platform companies are not well placed to be arbiters of what is truthful information.
6. Human cost of enforcement: frontline moderators spend hours reviewing graphic violence, hate speech, and exploitation. The resulting psychological toll leads to high burnout rates and high staff turnover.
7. Risk of over-moderation: If a platform programs its automated tools to be overly aggressive to avoid regulatory penalties, it can trigger a wave of 'false positives.' This has the risk of silencing legitimate speech, suppressing political dissent, and may disproportionately impact upon marginalised communities or vulnerable users seeking peer support (e.g., in online mental health or sexual information forums).

There are also the wider issues around how social media platforms run off engagement-driven algorithms, which means that content that triggers strong emotional reactions will generate the highest levels of user traffic. As a result, the social responsibility goals of digital platform companies in engaging in content moderation can come up against their site design and architecture principles, as well as commercial imperatives in what has been termed the attention economy.⁴¹

3.2 Soft Law as a Frameworks for Moderating Harmful Online Content

The enactment of regulatory measures to address harmful online content generally sit within the category of *soft law*. Soft law has been taken to refer to 'the range of rules, instruments, and standards where governments influence businesses to comply, but which do not form part of explicit government regulations.'⁴² Freiberg has noted that soft law 'occupies a middle position in the spectrum of available regulatory tools, with no government interference on one end and complete governmental involvement at the other.'⁴³

Soft law differs from co-regulatory measures such as the Oversight Board discussed above, in that the partnership is explicitly with governments rather than with civil society and is typically national rather than global in scope.⁴⁴ With regards to online content moderation, the standards that are expected to be met are set by legislation such as anti-discrimination, hate speech and misinformation laws, but the

⁴¹ John Bowers and Jonathon Zittrain, 'Answering Impossible Questions: Content Governance in an Age of Disinformation' (2020) 1(1) *Harvard Kennedy School Misinformation Review* 1; Ron Deibert, *Reset: Reclaiming the Internet for Civil Society* (House of Anansi, 2020).

⁴² Freiberg (n 26), p. 210.

⁴³ Ibid., p. 211.

⁴⁴ Gorwa, 'What Is Platform Governance?' (n 36).

means through which such standards are enforced resides with the digital platform companies as regulatees.

Such measures are generally accompanied by *principles-based regulation*, which involves 'setting a general objective or a standard, or describing a general duty, but without specifying the means of achieving that outcome, leaving it to other bodies to interpret the meaning of the principle in a particular context.'⁴⁵

Broadly speaking, this has been the approach adopted by the Office of the eSafety Commissioner under the *Online Safety Act 2021*. Under Part 4 of the Act, the Minister sets out minimum online safety requirements for online service providers, to 'establish a benchmark for online service providers to be proactive in how they protect people from abusive conduct and harmful content online'.⁴⁶

How these principles are to be enacted is framed in terms of an ongoing dialogue between eSafety and the online service providers, with expectations of transparency and accountability about their safety features, policies, practices, and complaints handling procedures, with the eSafety Commissioner publishing regular reports on how these platforms have performed against the benchmarks. The Act states that these requirements are *not enforceable* in court but does provide that eSafety can require service providers to report on their compliance with the expectations in various ways; failure to report is an offence.⁴⁷

3.3 Safety by Design

The Office of the eSafety Commissioner has aimed for a principle of *safety by design* to be adopted by the platform companies, which balances service provider responsibility, user empowerment and autonomy, and transparency and accountability. The intention is to 'elevate user safety as the third pillar in the developmental process for all online and digital technologies, sitting alongside privacy and security.'⁴⁸ The underlying principle is that 'rather than retrofitting safeguards after an issue has occurred, Safety by Design focuses on the ways technology companies can minimise online threats by anticipating, detecting and eliminating online harms before they occur.'⁴⁹

Safety by Design is aligned with the concept of a *Digital Duty of Care*. In the Report of the Statutory Review of the *Online Safety Act 2021*, Delia Rickard proposed that, in order to make Australians safer online, incentivise platforms to prioritise online safety, and future-proof the Act, there was the need for Australia to adopt a systems approach which puts responsibility on the online services to keep users safe.

In making these recommendations, the Rickard Review drew primarily upon two pieces of international legislation – the European Union's Digital Services Act, adopted in 2021, and the United Kingdom's Online Safety Act, passed in 2023.

⁴⁵ Freiberg (n 26), p. 239.

⁴⁶ Neil Fraser, *Children's Online Safety Legislation and Regulations – a Backgrounder* (Research Paper, Parliament of Australia - Department of Parliamentary Services, 16 August 2024), p. 5.

⁴⁷ Ibid., pp. 5-8.

⁴⁸ eSafety Commissioner, 'Safety by Design' (8 January 2026) <<https://www.esafety.gov.au/industry/safety-by-design>>.

⁴⁹ Ibid.

3.4 EU Digital Services Act

The European Union's Digital Services Act (EU DSA) is a prominent international example of a shift toward a proactive, systems-based approach to online safety, moving away from reactive content removal. This framework functions as a due diligence model, which is practically very similar to a statutory duty of care. Under this systems-based model, responsibility is placed directly on online service providers to keep their users safe.

A core feature of the EU DSA is the mandate for Very Large Online Platforms (VLOPs) and Very Large Online Search Engines (VLOSEs) to conduct systemic risk assessments. These assessments require services to diligently identify, analyse, and assess risks arising from their design, functioning, or usage, including algorithmic and recommender systems. The EU DSA outlines a non-exhaustive list of mitigation measures that services can implement to reduce, mitigate, and repair these identified risks. The EU DSA establishes a statutory default threshold for regulating services based on their 'reach', defining a VLOP and VLOSE as a digital service used by 10% or more of the population,

The EU DSA also sets several key transparency mechanisms including:

1. **Transparency Reporting:** In alignment with Articles 15 and 42 of the EU DSA, the report suggests requiring high-reach or high-risk services to publish annual transparency notices, utilizing the EU's model of requiring platforms to host these summaries on their own websites.
2. **Independent Audits:** The report suggests aligning Australian audit requirements with the EU DSA (such as Article 37) to reduce the compliance burden on industry, noting that auditors should adhere to an appropriate professional ethics code of practice.
3. **Public Databases:** The EU's publicly available terms and conditions database and its 'statement of reasons' database are highlighted as valuable global repositories of information that inform the public and researchers. Under Article 40 of the EU DSA, a data access scheme is also provided for accredited independent researchers.

3.5 UK Online Safety Act

The United Kingdom's Online Safety Act (UK OSA), which commenced in 2023, is also cited by the Rickard Review as providing a policy and regulatory framework that has transitioned away from a purely reactive, content-removal framework toward a proactive, systems-based approach. At the same time, the Rickard Review is critical of how it was enacted in practice.

The concept of a Duty of Care was originally conceived by academic experts Lorna Woods and William Perrin as a singular, overarching framework which could be underpinned by regulatory codes of conduct.⁵⁰ By the time the UK OSA 2023 passed through Parliament, it was enacted with a series of multiple, narrower duties rather than one general duty. This is contrary to the original duty of care principle, as implementing multiple duties creates a paradox where platforms only assess risks

⁵⁰ Lorna Woods and William Perrin, *Online Harm Reduction – a Statutory Duty of Care and Regulator* (Carnegie UK Trust, 2019).

after a site is already populated with harmful material, adding significant time lags to code implementation.⁵¹

Under the UK OSA 2023, providers of regulated services must manage and mitigate risks stemming from illegal content/activity and material harmful to children. It mandates operational and design measures to limit exposure to illegal material and requires services to keep a written record of all aspects of every risk assessment.

The UK OSA 2023 does incorporate safety by design principles insofar as it establishes positive statutory duties of care that place proactive and preventative responsibilities directly on online service providers. Specifically, it mandates that platforms take proportionate service design and operational measures to prevent or minimize the risk of users encountering illegal content and to mitigate the risk of harm.

Rather than relying purely on reactive, after-the-fact content removal, the UK framework requires companies to conduct risk assessments and manage systemic dangers before harms proliferate. The Rickard Review aligns the UK framework with a 'preventative and systemic approach to making the online world a safer place by design,' emphasizing the philosophy that 'it is better to put a fence at the top of the cliff, than an ambulance at the bottom of it'.⁵²

3.6 Digital Duty of Care

The Report proposed that a Digital Duty of Care approach should guide online safety, informed by comparable approaches in fields such as workplace health and safety. A Digital Duty of Care approach was described in the following terms:

This would require all services to take reasonable steps to prevent foreseeable harms. It would also bring with it a requirement that online services apply safety by design principles to the design of all new services and to any significant changes to existing ones. For the largest and riskiest services, this requires at least annual risk assessments, mitigation of risks, measurement of success (or otherwise) and strong transparency reporting. The regulator, eSafety, would have the ability to identify services that are sufficiently risky to be included in this group even if they have less reach.⁵³

Key recommendations of the Rickard Review that are relevant to the question of how to address the problems of online hate speech are:

Recommendation 4: *That Australia adopt a singular and overarching duty of care that encompasses due diligence, and is underpinned by safety by design principles, risk assessment, risk mitigation and measurement.*

Recommendation 5: *The harms that should be highlighted for attention under a duty of care should at a minimum include:*

- *Harms to young people, including child sexual exploitation and abuse (including grooming), bullying and problematic internet use*

⁵¹ Delia Rickard, *Report of the Statutory Review of the Online Safety Act 2021* (Commonwealth of Australia, 2024), p. 53.

⁵² Ibid., p. 57.

⁵³ Delia Rickard, *Report of the Statutory Review of the Online Safety Act 2021* (Commonwealth of Australia, 2024), p. 7.

- Harms to mental and physical wellbeing, including threats to harm or kill, or attacks based on a person or group of people's protected characteristics, such as sex, gender, sexual orientation, race, ethnicity, disability, age or religion
- Instruction or promotion of harmful practices, such as self-harm/suicide, disordered eating and dares that could lead to grievous harm
- Threats to national security and social cohesion, such as through promotion of terrorism and abhorrent violent extremist content; and
- Other illegal content, conduct and activity.⁵⁴

The Federal Government is expected to table legislation in 2026 that provides a direct response to the recommendations of the Rickard Review.

3.7 A Major Gap: The Inability to Enact Misinformation Legislation

A major gap in the Australian framework is the absence of clear provisions regarding online misinformation and disinformation. The first attempt to develop a framework to regulate misinformation and disinformation was through a self-regulatory code.⁵⁵ In 2019, the Digital Industry Group (DIGI) was asked by the Federal Government in 2019 to develop a voluntary disinformation code of practice drawing upon a similar code adopted in the European Union. DIGI is a not-for-profit industry association advocating for the digital industry in Australia, whose members include Apple, Google, Meta, Microsoft, TikTok and (until late 2023) X.

In February 2021 DIGI launched the *Australian Code of Practice on Disinformation and Misinformation*, which committed these technology companies to reducing the risk of online misinformation causing harm to Australians. It included a complaints handling procedure and had the capacity to sanction DIGI members for non-compliance with the Code.

In October 2023, the civil society organization Reset Australia complained to DIGI in about X removing a function allowing users to report tweets as misinformation or disinformation for investigation during the Voice to Parliament referendum.⁵⁶ X failed to respond to the complaint, and in November 2023 the DIGI disinformation and misinformation independent complaints subcommittee found that X had committed a serious breach of the Code and has refused to cooperate with DIGI. This led to X being removed as a signatory to the Code, after it claimed that as Twitter was the original signatory to the Code, X was a new company and was not obliged to follow the requirements agreed to by its predecessor.

The Code breaches by X revealed the limits of a self-regulatory Code when a major social media platform refuses to comply with the directives of an agency when it is a signatory to that Code. In its review of the DIGI self-regulatory Code in 2023, the ACMA recommended that government should provide it with reserve powers to register industry codes, enforce industry code compliance and make standards relating to the activities of digital platforms. These powers would provide a mechanism for further intervention if code administration arrangements proved to be inadequate, or the voluntary industry code fails.

⁵⁴ Ibid., p. 21.

⁵⁵ This account draws upon Terry Flew et al., *Misinformation and Digital Policy in Australia*, Safer Internet Lab Snapshots (Safer Internet Lab, 2023), <https://hdl.handle.net/2123/34106>.

⁵⁶ Alice Dawkins and Rys Farthing, 'Combating Misinformation and Disinformation through More Effective Regulation', *The Policymaker* - James Martin Institute (28 September 2023) <<https://thepolicymaker.jmi.org.au/combating-misinformation-and-disinformation-through-more-effective-regulation/>>.

Consequently, the Federal Government proposed the Communications Legislation Amendment (Combatting Misinformation and Disinformation) Bill. The Bill aimed to combat seriously harmful misinformation and disinformation on digital communications platforms, by providing statutory guidelines outlining the responsibilities of digital platforms in managing and moderating content and providing a legal framework to address the challenges posed by misinformation and disinformation. The Bill provided a definition of disinformation as:

Content that is reasonably verifiable as false, misleading, or deceptive, provided to end-users in Australia, and likely to cause serious harm. Disinformation also includes the dissemination of such content with deceptive intent or inauthentic behavior, including that by or on behalf of a foreign power.

Identification of a 'serious harm' principle aimed to address criticism of an earlier draft of the legislation was that it blurred the lines between disinformation and legitimate statements of disagreement on contentious issues, thereby running the risk – in the eyes of its critics – of unduly restricting freedom of speech.⁵⁷ The Bill was opposed not only by the Liberal-National Party Coalition, but also by the Australian Greens, who felt that it did not do enough to address the power of tech platforms and media moguls⁵⁸, and by key Crossbench Senators. It was criticised by Australian Human Rights Commissioner Lorraine Finlay as being overly broad in its definitions of misinformation and disinformation, setting an unacceptably low threshold for what constitutes harm, and placing excessive powers over online content with the Australian Communications and Media Authority.⁵⁹

With no pathway to adoption in the Federal Parliament, the Albanese Government withdrew the legislation in November 2024. The absence of Federal legislation in the field leaves a notable gap in regulatory capacity surrounding misinformation and online harms.

3.8 International Lessons on Regulating Harmful Online Content

An important global context for testing different models for regulating harmful online content has been the Russian invasion of Ukraine in 2022 and the 'online war' that has accompanied the territorial conflict. In a review of various measures adopted by both platforms and by governments, Nataliia Filatova-Bilous⁶⁰ has identified the following as measures that have been adopted and the relative strengths and weaknesses of each:

⁵⁷ John Storey, 'Federal Government Re-Commits To "Misinformation" Bill Censorship', *Institute of Public Affairs* (23 November 2023) <<https://ipa.org.au/publications-ipa/media-releases/federal-government-re-commits-to-misinformation-bill-censorship>>; David Coleman, 'The Government's Misinformation Bill Is a Betrayal of Democracy', *Australian Financial Review* (online, 8 October 2024) <<https://www.afr.com/politics/federal/the-government-s-misinformation-bill-is-a-betrayal-of-democracy-20241001-p5keuo>>.

⁵⁸ Australian Greens, 'Greens Call on Government to Withdraw Mis and Disinformation Bill' (22 November 2024) <<https://greens.org.au/news/media-release/greens-call-government-withdraw-mis-disinformation-bill#:~:text=%E2%80%9Cgives%20media%20moguls%20like,media%20and%20boosting%20dangerous%20algorithms.>>>.

⁵⁹ Australian Human Rights Commission, 'Why Misinformation Bill Risks Freedoms It Aims to Protect' (24 August 2024) <<https://humanrights.gov.au/about-us/media-centre/opinion-pieces/opinion-pieces/why-misinformation-bill-risks-freedoms-it-aims-protect#:~:text=This%20specific%20exclusion%20privileges%20government,by%20political%20opponents%20might%20be.>>>.

⁶⁰ Nataliia Filatova-Bilous, 'Content Moderation in Times of War: Testing State and Self-Regulation, Contract and Human Rights Law in Search of Optimal Solutions' (2023) 31(1) *International Journal of Law and Information Technology* 46.

Table 2**Harmful Content Moderation Measures Adopted by Platforms and Governments in Response to the Russia-Ukraine War**

Type of Regulatory Response	Examples	Strengths	Weaknesses
Self-regulation by companies themselves (Meta, Alphabet)	• Removal of content deemed to be disinformation and/or hate speech • Ad restrictions • Differential treatment (e.g. between Russian/Ukrainian users) • Fact-checking online posts	• Promptness of response • Recognition of threat posed by co-ordinated action by external actors • Relative consistency in response	• Lack of transparency about criteria used • Competing platforms apply fewer or no criteria • Inconsistent criteria adversely affect users' access to information
Self-regulation through soft law	• Meta's Oversight Board • Partnerships involving NGOs, academics and other third parties e.g. Global Network Initiative) • Principles-based self-regulation e.g. Manila Principles on Intermediary Liability, Santa Clara Principles on Transparency and Accountability in Content Moderation.	• Enables balanced and borderless regulation • Can be aligned to international law principles	• May lack transparency in application • Perceived lack of independence • Lack of clear enforcement criteria • Voluntary nature of involvement
Co-regulation with governments	• Code of Conduct on Countering Illegal Hate Speech Online 2016 (with European Union) • Code of Practice on Online Disinformation 2018 (with European Union – renewed 2021)	• Scope for independent assessment of compliance • Alignment with other forms of legislation e.g. EU Digital Services Act 2021	• Codes are generally non-binding and non-enforceable • Lack of external monitoring provisions •
Nation-state regulation	• European Union Digital Services Act 2021 • UK Online Safety Bill 2023	• Deliberate and balanced provisions • Capacity for enforcement	• Potential to impact adversely upon freedom of expression

		• External agency as monitor of compliance • Legitimacy of laws and enforcement procedures	• Human rights implications of vaguely defined terms • Potential to impact upon contractual platform-user relations • Risk of platforms choosing not to provide services to particular jurisdictions • Risk of platforms adopting requirements of the most stringent national regulators
Contract law remedies	• Enforcement by courts of Terms of Use/Terms of Service (ToS) obligations on platforms • Consumer protection laws for platform users as consumers	• Not tied to nation-state regulations • Open-ended and flexible in terms of application and enforcement	• Remedies and forms of redress are not clearly defined • Vagueness in wording of ToS obligations • Cannot be easily extended from individual users to groups of users or societies
Human rights approaches	• Application of human rights principles to self-regulatory frameworks (e.g. Oversight Board) • Provides a three-part test of legality, legitimacy and necessity (proportionality) of limitations to users' rights • Procedural rules and due process requirements for platform obligations	• Allows for a universal mechanism of content moderation functioning equally globally • Can be applied at group levels • Sets limits upon capacity of nation-states to restrict legitimate freedom of expression	• Vagueness of standards and criteria used in international conventions on human rights • Lack of uniformity in how rights are formulated and enforced at national levels • Lack of enforceability particularly on businesses operating globally

Source: Nataliia Filatova-Bilous, 'Content Moderation in Times of War: Testing State and Self-Regulation, Contract and Human Rights Law in Search of Optimal Solutions' (2023) 31(1) *International Journal of Law and Information Technology* 46.

Hostile Misinformation Online

4.1 Hostile Misinformation

There is a large and growing academic literature on misinformation.⁶¹ In reviewing this literature, Brendan Nyhan makes the point that the focus should be on misperceptions rather than misinformation, as it is difficult to know a speaker's intentions in making claims (i.e. are they deliberately lying), and because many claims that may be considered to be misinformation rest upon at least some factual information, as well as upon claims that are not easily disproven (e.g. conspiracy theories).⁶²

Nyhan proposed that attention needs to be given to both the supply and demand of misinformation, which requires consideration not only of the role played by political and other actors and the use of digital technologies (supply factors in misinformation) but also the propensity of individuals and groups to hold to particular misperceptions that 'are consistent with their beliefs, attitudes, or group identity', which is also referred to as *directionally motivated reasoning*.⁶³ This can be referred to as the demand for misinformation.

Nick Couldry has argued that social media platforms promote and commercialize *affective polarization*. This refers to the extent to which social identities are bound up with belonging to an in-group, which requires for its very structure and existence an 'out-group' – a 'they' to be countered to a 'we' identity – that is not only disagreed with, but viewed with hostility and contempt.⁶⁴ The extent to which such affective polarisation leads to political polarisation that is associated with declining trust and the fraying of social cohesion is the subject of much academic and policy debate.⁶⁵

Recent work has drawn attention to a *hostile misinformation effect*. Van Erkel et al. have found evidence across three European countries supporting the proposition that individuals with strong political and other views are more likely to perceive the information environment as hostile to their own point of view.⁶⁶ Drawing upon the concept of the hostile media effect, where individuals with different political orientations assessed the same news item as 'balanced' or 'biased' in conjunction with their own beliefs, the authors found that perceptions of bias existed around 'beliefs that online misinformation campaigns are particularly targeting their party and

⁶¹ See e.g. Chico Q Camargo and Felix M Simon, 'Mis- and Disinformation Studies Are Too Big to Fail: Six Suggestions for the Field's Future' [2022] *Harvard Kennedy School Misinformation Review* <<https://misinforeview.hks.harvard.edu/?p=9947>> ('Mis- and Disinformation Studies Are Too Big to Fail'); Brendan Nyhan, 'Facts and Myths about Misperceptions' (2020) 34(3) *Journal of Economic Perspectives* 220; Brendan Nyhan and Jason Reifler, 'When Corrections Fail: The Persistence of Political Misperceptions' (2010) 32(3) *Political Behavior* 303; Robert Faris and Joan Donovan, 'The Future of Platform Power: Quarantining Misinformation' (2021) 32(3) *Journal of Democracy* 152; Yochai Benkler, Rob Faris and Hal Roberts, *Network Propaganda: Manipulation, Disinformation, and Radicalization in American Politics* (Oxford University Press, 2018); W Lance Bennett and Steven Livingston, *The Disinformation Age* (Cambridge University Press, 2020).

⁶² Nyhan (n 62), pp. 220-221.

⁶³ Ibid., p. 226.

⁶⁴ Nick Couldry, *The Space of the World: Can Human Solidarity Survive Social Media and What If It Can't?* (Polity, 2025).

⁶⁵ Stephen Lewandowsky, 'The Architecture of the Internet Creates Risks for Democracy' (2026) 392(6802) *Science* 1.

⁶⁶ Patrick van Erkel et al, 'The Hostile Misinformation Effect: How Ideological Congruence Drives the Assessment of Misinformation Targets' [2026] (OnlineFirst) *Political Communication*.

that one's own side or party is unfairly singled out by hostile forces seeking to manipulate public opinion'.⁶⁷

Factors that were particularly likely to trigger hostile misinformation effects included intensity of political engagement, political partisanship, alignment with other ideological beliefs and values, and the sense that the 'other' entity (e.g. a rival political party) holds political power. The authors concluded that 'misinformation perceptions, and the feeling that it is abound, are strongly tied to political identities, which could further polarize societies and impact political polarization'.⁶⁸

4.2 Challenges in Addressing Hostile Misinformation Online

Drawing up the work of Nyhan⁶⁹ and others, we can identify eight types of interventions that can reduce misperceptions and misinformation online, at both the pre-circulation and post-circulation levels:

Table 3
Interventions that can Reduce Misperceptions and Misinformation Online

	<i>Individuals</i>	<i>Political and opinion leaders</i>	<i>Digital platforms</i>	<i>Platform regulators</i>
Pre-circulation	Information provision/media literacy	Reputational incentives	Reduce untrustworthy/boost trustworthy sources	Licencing, codes and standards
Post-circulation	Corrections/fact-checking	Reputational sanctions	Fact-check labels/banning/shadow banning	Sanctions and fines; withdrawal of financial support

At the individual level, considerable attention has been given to promoting media and information literacy in a number of countries, as well as supporting third-party fact-checking initiatives.⁷⁰ This is important work and is a critical part of any response to online misinformation. At the same time, the issues around how political partisanship impacts upon what is deemed to be a trustworthy information source are considerable, and these initiatives cannot in themselves resolve misperceptions that arise from in-group/out-group dynamics and hostile misinformation effects.

Preventative measures which are designed to build psychological or structural immunity against false narratives before people encounter them, so that such measures can effectively leverage people's propensity to update their beliefs

⁶⁷ Ibid., p. 4.

⁶⁸ Ibid., p. 19.

⁶⁹ Nyhan (n 62).

⁷⁰ On media literacy, see reports by 'The Australian Media Literacy Alliance' (2026) <<https://medialiteracy.org.au/>>. Major Australian fact-checking organisations include AAP Fact Check, ABC News Verify and RMIT FactLab. The leading organizations above are generally signatories to the International Fact-Checking Network (IFCN) code of principles. This framework requires them to uphold non-partisanship, transparency of sources, transparency of funding, and a commitment to open, honest corrections.

according to the evidence, have proven psychologically useful in some instances.⁷¹ At the same time, they rely upon the general willingness of audiences to operate reasonably and defer to expert consensus.

They are ineffectual in instances where people also *knowingly* traffic in falsehoods, and do not care that if it is misinformation as long as it aligns with their pre-determined position. The psychological motivations behind misinformation sharing are complex and go well beyond simply 'being misled'. They can derive from a willingness to be disruptive and non-conscientious, or from the intention to exaggerate for satirical intent.⁷²

Moreover, fact-checkers themselves can face accusations of bias, as seen with allegations during the 2023 Voice to Parliament Referendum that the then RMIT ABC Fact Check unit was disproportionately targeting and censoring conservative viewpoints on Facebook.⁷³ Nyhan has concluded that:

In general, interventions targeting the public face difficult issues in reaching the individuals who hold misperceptions, creating durable changes in beliefs, and scaling in a cost-effective manner across the population. It is therefore important to also consider alternate approaches that seek to limit misperceptions by reducing the supply of misinformation and its spread.⁷⁴

4.3 The Role of Political and Opinion Leaders

Political and opinion leaders have an important role with regards to online information. There has been a traditional focus in communications upon the role played by political elites as part of what is known as the *two-step flow model*.⁷⁵ It is generally agreed that, in the contemporary media environment, this needs to be complemented by consideration of the roles played by celebrities, influencers, artists, sports people and others engaged in both traditional and social media environments.⁷⁶ The major reputational incentive that such figures have is their perceived trust, and this can be a highly valuable resource in addressing online misinformation.

At the same time, we are aware that, in times of conflict and polarization, reputational effects can cut both ways. Some online personalities cultivate the image of being a contrarian and a truth-teller by presenting alternative arguments to what they perceive to be the dominant political and media narratives. It has been observed in recent years that there exists a significant online audience for content which may

⁷¹ Sander van der Linden, *Foolproof: Why We Fall for Misinformation and How to Build Immunity* (Fourth Estate, 2024).

⁷² Dustin P Calvillo, Alex León and Abraham M Rutchick, 'Personality and Misinformation' (2024) 55. *Current Opinion in Psychology* 101752.

⁷³ Amanda Meade, 'RMIT's Fact Check Reinstated by Facebook Two Months after Suspension over News Corp Voice Complaints', *Guardian Australia* (online, 8 November 2023) <<https://www.theguardian.com/australia-news/2023/nov/08/rmit-factlab-fact-check-service-reinstated-facebook-suspension-voice-referendum#:~:text=No%20voice%20campaigners%20%E2%80%93%20including%20Sky,aims%20to%20tackle%20online%20misinformation.>>.

⁷⁴ Nyhan (n 62), p. 231.

⁷⁵ Bryan Southwell, 'Two-Step Flow, Diffusion, and the Role of Social Networks in Political Communication' in *Oxford Handbook of Political Communication* (Oxford University Press, 2017) 683.

⁷⁶ Michael Delli Carpini, 'The Political Effects of Entertainment Media' in *Oxford Handbook of Political Communication* (Oxford University Press, 2017) 851.

be considered to foment hostile misinformation, and which is poorly addressed by regulatory guidelines designed for traditional print and broadcast media.⁷⁷

The rise of what have been termed *boutique media* such as Substacks, podcasts and news influencers on platforms such as Instagram and TikTok have been associated with affective authority, where trust arises from an emotional connection and perceived intimacy with the audience and the personal brand, charisma, and distinct worldview of the creators, as distinct from traditional sources of media trust such as objectivity and balanced storytelling.⁷⁸

4.4 Changing Approaches to Moderating for Hostile Misinformation

Digital platforms such as Meta (Facebook/Instagram), X (formerly Twitter), Google (YouTube) and others have developed mechanisms to address online misinformation on their sites. Measures that have been used include:

- Third-party fact-checking arrangements, such as Meta's arrangement with RMIT FactLab.
- Community Notes, or crowd-sourced content moderation and fact-checking by site users.
- Content moderation based upon publicly available guidelines.
- Banning users perceived to be 'super-spreaders' of misinformation from their site. A variant of this is shadow banning, or the blocking or restricting a user's content on a social media platform or online community without the user's explicit knowledge.

The commitment of platforms to misinformation measures has varied over time. It was strong during the COVID-19 pandemic, where there was a particular focus upon minimizing the circulation of public health misinformation. Following the election of President Donald Trump in the U.S. in 2024, many platforms reduced their commitment to these measures, as they had been accused of unfairly suppressing conservative voices (not least Mr. Trump himself).

With the takeover of Twitter by Elon Musk in 2022 and its rebranding as X, the platform dissolved its Trust & Safety Council, which had led this work, and adopted Community Notes as an alternative approach. It was noted earlier that Meta created a third-party Oversight Board to independently review its content moderation practices through a quasi-judicial framework.⁷⁹

⁷⁷ Joseph E Uscinski, Casey Klofstad and Matthew D Atkinson, 'What Drives Conspiratorial Beliefs? The Role of Informational Cues and Predispositions' (2016) 69(1) *Political Research Quarterly* 57 ('What Drives Conspiratorial Beliefs?').

⁷⁸ 'Time for Trust' (Deadset Studios, 1 December 2025) <<https://shows.acast.com/time-for-trust/episodes/karin-wahl-jorgensen-on-how-boutique-media-are-building-busi>>.

⁷⁹ Lakshmi Gopal, 'Facebook's Oversight Board & the Rule of Law: The Importance of Being Earnest,' *American Bar Association Business Law Today*, October 12, 2021, <https://businesslawtoday.org/2021/10/facebooks-oversight-board-the-rule-of-law-the-importance-of-being-earnest/>; David Morar, 'Facebook's Oversight Board Makes an Imperfect Case For Private Governance,' *Brookings Tech Tank*, February 23, 2021, <https://www.brookings.edu/blog/techtank/2021/02/23/facebooks-oversight-board-makes-an-imperfect-case-for-private-governance/>.

4.5 Principles to Inform Government Regulation for Hostile Misinformation

The limitations of other approaches indicates that there is an important role for platform regulators in targeting online misinformation. Initiatives targeted at individual users and political and opinion leaders are important and relevant, as are the activities of the platforms themselves. But they are insufficient and run in parallel to competing principles and objectives, such as avoiding accusations of bias and maximizing user engagement. The Australian Federal government faces a challenge in addressing online misinformation in the absence of legislation that is focused upon this goal.

One way in which governments can influence platform moderation is through their advertising spending and other forms of financial and other support. They can also choose not to maintain accounts on particular sites. For example, a number of media organisations have withdrawn their X accounts in response to what they have perceived to be inadequate moderation practices on the site.

Filatova-Bilous concludes that state regulations are necessary to address the limitations of self-regulation, contract law, and human rights principles.

Although relationships on platforms are private by nature, private law remedies cannot be effective enough to cope with the risks brought about in modern realm especially in times of harsh social conflicts. State regulation proves to be more effective in this regard since it goes beyond particular private disputes and creates uniform approaches capable of addressing common issues, which is particularly important when the rights and interests of large social groups are at stake.⁸⁰

Insofar as nation-state governments have a role in setting content moderation rules and guidelines that cannot be addressed through self-regulation or contract law, their actions should be governed by five principles:

1. The *principle of legality* should be formative for the provisions regulating platform-user relationships, requiring platforms to formulate their ToS in a clear and comprehensive manner, to include and to clearly express the provisions on any restrictions concerning online expressions, while also avoid using in its laws vague and ambiguous terms and clearly outlining the procedures and sanctions applicable to platforms in breach.
2. Laws should reflect the *standard of legitimacy*, imposing on platforms an obligation to apply the restrictions provided for by their ToS when there is a legitimate justification for their application, while also limiting its discretion to interfere with platform-user relationships to the cases when such interference is needed to protect human rights, public interests and other critically essential values.
3. They should implement the *principle of proportionality* (necessity), so that state laws should require platforms to apply specific remedies only if there are no softer ones or if the softer ones cannot ensure the needed balance or protection for the aggrieved parties and only applied in instances where no other sanctions or remedies can restore the balance in the online environment and guarantee online and offline security.

⁸⁰ Filatova-Bilous (n 61), p. 71.

4. Such laws should contain procedural guarantees for users and platforms, namely, *due process guarantees*. Platforms should be encouraged to create mechanisms allowing their users to notify the platform about harmful content or a suspicious user or his/her activity, to lodge complaints on decisions taken by a platform, and to get an explanation from a platform on the reasons of deciding this or that way in a particular situation.
5. Nation-states should aim, to the greatest degree possible, to achieve *harmonization* of their own laws and regulations with agreed international treaties and standards, including those developed by the United Nations and other international governmental organizations (IGOs), as well as those developed by international non-governmental organizations (INGOs), such as the Manila Principles on Intermediary Liability.⁸¹

4. Artificial Intelligence and Generative Artificial Intelligence (GenAI)

5.1 The Rapid Rise of AI and its Impacts in News Media

Artificial intelligence (AI) is having a massive transformative impact worldwide. It is estimated that global AI expenditure will be \$US3.34 trillion by 2027, almost double the rate of expenditure in 2025 (\$US1.76 trillion).⁸² AI has been identified as a General-Purpose Technology (GPT), meaning that its transformative impacts are pervasive throughout the economy and society, there is continuous improvement over time, and it spawns continuous innovation in products and services.⁸³ In Australia, AI had now become the third largest technology R&D sector and will account for \$1.34bn in R&D spending by June 2026, or 7% of total R&D expenditure.⁸⁴ When AI-related expenditure is also considered, such as investment in data centres and business investment in AI-enabled software, the broader AI industry is now worth tens of billions to the Australian economy.⁸⁵

AI incorporates a range of disparate elements. It has been defined as involving 'the development of systems that can perform tasks typically requiring human intelligence, such as reasoning, learning, and problem-solving'.⁸⁶ It has also been defined as referring to 'computational systems that learn from data to recognize patterns, make predictions, and generate content—automating or extending tasks at scales and speeds beyond practical human effort—though with capabilities and limitations that vary unevenly across tasks'.⁸⁷ AI takes a variety of practical forms,

⁸¹ Ibid., pp. 71-74.

⁸² Statista, *Artificial Intelligence (AI) Spending Worldwide from 2025 to 2027* (2026) <<https://www.statista.com/statistics/694638/worldwide-cognitive-and-artificial-intelligence-revenues/>>.

⁸³ Flavio Calvino, Daniel Haerle and Sarah Liu, *Is Generative AI a General-Purpose Technology? Implications for Productivity and Policy* (OECD Artificial Intelligence Papers No 40, OECD, June 2025).

⁸⁴ Rich Atkinson, 'Australia's AI Investment on Track to Hit \$1.3b in the next Year', *Airteam* (8 September 2025) <<https://www.airteam.com.au/blog/post/australias-ai-investment-on-track-to-hit-1-3b-in-the-next-year>>.

⁸⁵ Australian Government, *National AI Plan* (Department of Industry, Science and Resources, 2025) <<https://www.industry.gov.au/publications/national-ai-plan>>.

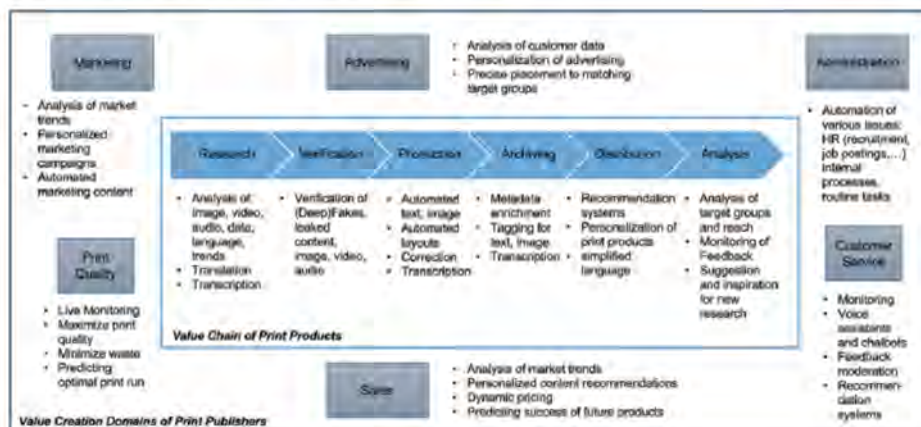
⁸⁶ sAIPien, *Scalable AI Program for the Intelligent Evolution of Networks* (MIT Media Lab, 2025) <<https://www.media.mit.edu/groups/saipien/overview/>>.

⁸⁷ Seth Lewis, Rodrigo Zamith and Tomas Dodds, *Journalism in the Age of AI: From Acceleration to Reimagination* (Polity Press, 2026), p. 10.

including Agentic AI, Machine Learning, Computer Vision, Neural Networks, Robotics, and Generative AI.

Referring to the print media industries in particular, Michael Graßl has identified the following areas where AI impacts upon the industry value chain:

Figure 3
Impact of AI on the Print Media Value Chain



Source: Michael Graßl, 'Print: News, Magazines, and Publishing' in *Handbook of AI-Based Media Disruption: Emerging Technologies and Multidisciplinary Perspectives Across Sectors* (Springer, 2026), p. 10.

5.2 Generative AI and the Crisis of News Trust

Generative AI presents new challenges for media, information, and the creative industries.⁸⁸ Generative AI (GenAI) refers to 'AI systems that produce new content, such as text, images, music, or videos, by learning patterns from existing data. These models often use techniques like generative adversarial networks (GANs), variational autoencoders (VAEs), and diffusion models to create realistic and novel outputs.'⁸⁹

Generative AI arrives at a time when levels of trust in news media are at historic lows, and news organisations are feeling both financial pressure from declining advertising revenues, shifting audience preferences towards social media and news influencers, and political pressure from populist leaders labelling their work as 'fake news'.⁹⁰ With its capacity to produce machine-generated images, text and creative content at scale, GenAI challenges the implicit social contract that has informed media trust as 'the bond between the public and news media' where:

⁸⁸ Terry Flew, Jonathon Hutchinson and Wenjia Tang, 'Artificial Intelligence and the Creative Industries' in *De Gruyter Handbook of Creative Industries* (De Gruyter, 2025); Lewis, Zamith and Dodds (n 88).

⁸⁹ sAlpien (n 87), p. 10.

⁹⁰ Terry Flew, Agata Stepnik and Timothy Koskie, *Valuing News: Digital Platforms and Journalism Futures* (Springer, 2026); Richard Fletcher et al, 'The Link between Changing News Use and Trust: Longitudinal Analysis of 46 Countries' (2026) 75 *Journal of Communication* 1; Sora Park et al, *Digital News Report: Australia 2026* (News and Media Research Centre, University of Canberra, 2026); Jim Egan et al, *Reuters Institute Digital News Report 2026* (Reuters Institute for the Study of Journalism, 2026).

In uncertain situations, the public, whether consciously or subconsciously, expect that their interactions with news outlets will yield positive outcomes rather than negative ones. ... As ... individuals often lack the means to independently verify news reliability and instead rely on perceived media credibility as a proxy for trustworthiness. Hence, trust involves a willingness to accept this informational vulnerability in the hope of a beneficial exchange.⁹¹

5.3 Deepfakes and Synthetic Media

One concern arising from GenAI is the growing use of *deepfakes*. Deepfakes is a term given to forms of synthetic media that enable the manipulation of photos, images and audio to give the impression that events have occurred which are artificially generated, and people have said things that are false.⁹² The risks associated with deepfake videos are described by Whittaker et al. in these terms:

Artificially generated video poses a greater threat of disinformation compared to text or image-based fake news due to how difficult the digital alteration can be to spot. People are inclined to believe what they see, and when combined with factors such as confirmation biases and social media echo chambers which facilitate the propagation of fake news, artificially generated content will further fuel the fake news crisis with their ability to undermine truth and confuse viewers. As malicious deepfakes become more commonplace, the public may even begin to lose trust within news and factual information.⁹³

Deepfakes are a subset of what is known as synthetic media. Synthetic media refers to 'all automatically and artificially generated or manipulated media'.⁹⁴ While all deepfakes are forms of synthetic media, not all forms of synthetic media are deepfakes, and synthetic media are widely used in many forms of media today. A recent example was the Beatles' track "Now and Then", released in late 2023, and using John Lennon's voice from an unused 1978 recording. While AI was used to extract the voice from the accompanying recording, which was unusable at the time due to poor overall sound quality. While AI was used to extract the voice from the accompanying recording, which was unusable at the time due to sound quality, this is not a "deepfake", as it uses Lennon's voice rather than recreating Lennon's voice through the use of Generative AI.⁹⁵

While the manipulation of images obviously has a long history in both news and entertainment media (do cinema viewers really think that cities are being destroyed?), deepfakes are frequently malicious in nature and intended to deceive an audience, often used as a form of visual disinformation in contexts such as elections

⁹¹ Castulus Kolo, Joschka Mütterlein and Sarah Jane Schmid, 'Impact of AI on Trust in the Media' in *Handbook of AI-Based Media Disruption: Emerging Technologies and Multidisciplinary Perspectives Across Sectors* (Springer, 2026) 159., p. 162.

⁹² Lucas Whittaker et al, "'All Around Me Are Synthetic Faces': The Mad World of AI-Generated Media" (2020) 22(5) *IT Professional* 90.

⁹³ *Ibid.*, p. 95.

⁹⁴ *Ibid.*, p. 91.

⁹⁵ Will Sullivan, 'The Beatles Release Their Last Song, "Now and Then," Featuring A.I.-Extracted Vocals From John Lennon' (3 November 2023) *Smithsonian Magazine* <<https://www.smithsonianmag.com/smart-news/the-beatles-release-their-last-song-now-and-then-ai-john-lennon-180983188/#:~:text=But%20the%20Beatles%20track%20stands,McCartney%20says%20in%20the%20film.>>>.

and wars.⁹⁶ As a form of synthetic media, deepfakes exemplify risks associated with AI technologies for trust in information and the health of the public sphere as:

AI-based technology enables users to create or manipulate images, videos, and audio with comparatively little knowledge and within a short period of time. Therefore, with the rise of AI-driven technologies, manipulation has reached a high level of sophistication and accessibility. Synthetic media such as deepfakes make it increasingly difficult for both media professionals and Internet users to distinguish between real and artificially generated media.⁹⁷

We need to exercise caution in automatically assuming that audiences are more susceptible to online deepfakes than other forms of misinformation by virtue of the superior technological affordances. There are instances where users respond positively to obviously fake images as they align with a predisposition they have to favor such an outcome (as with the 2023 image of Real Madrid fans waving a giant Palestinian flag), because they see such images as humorous or ironic (e.g. an image of the late Pope Francis wearing a large Balenciaga puffer jacket), or where they bring prior assumptions about the veracity of the poster (e.g. the image of US President Donald Trump as the Pope).⁹⁸

A larger threat of deepfakes is that of undermining information integrity by leading to the conclusion that all images are potentially fake and all information sources are potentially untrustworthy. The RAND Corporation has observed that ‘the mass proliferation of false content could foment a liar’s dividend, which occurs when authentic content is slandered as fake and further undermines trust in media’.⁹⁹

⁹⁶ Daniel Bedndahan Bitton, Alexander Godulla and Christian Hoffmann, ‘Deepfakes: Threats and Media Impact’ in *Handbook of AI-Based Media Disruption: Emerging Technologies and Multidisciplinary Perspectives Across Sectors* (Springer, 2026) 387.

⁹⁷ Ibid., p. 389.

⁹⁸ Peter Carlyon, *Deepfakes Aren’t the Disinformation Threat They’re Made Out to Be* (19 December 2023) <<https://www.rand.org/pubs/commentary/2023/12/deepfakes-arent-the-disinformation-threat-theyre-made.html>>.

⁹⁹ Tood Helmus and Bilva Chandra, *Generative Artificial Intelligence Threats to Information Integrity and Potential Policy Responses* (RAND Corporation, 16 April 2024) <<https://www.rand.org/pubs/perspectives/PEA3089-1.html>>., p. 7.

5. Conclusion and Recommendations

In light of the complex issues involved with digital platform regulation, and some of the challenges involved in determining whether online content can be deemed to be anti-Semitic, this Report has opted against making detailed policy recommendations to the Royal Commission.

I have instead provided a series of signposts which draw upon both Australian and international experience about mediated trust, platform regulation, moderating online content, hostile misinformation online, and the challenges of Generative AI, to indicate priority areas to be addressed. A summary of these is as follows:

1. Declining levels of societal trust and trust in institutions are generating the preconditions for fraying social cohesion. Digital platform companies need to accept an ethical obligation to work with national governments and relevant stakeholders to contribute positively towards a more trustworthy information ecosystem. This is particularly important in an era where Generative AI will account for a greater percentage share of online content.
2. The problems of harmful online content cannot be addressed through self-regulation alone. There is a role for governments in developing a framework for tackling hostile misinformation online, in line with broad democratic and human rights principles. The Federal Government's response to the Digital Duty of Care approach proposed by the Rickard Review of the Online Safety Act 2021 will provide an important component of such a response.
3. The absence of legislation governing misinformation means that many options for Australian policymakers are 'second-best' ones. While measures such as digital media literacy and fact checking are significant, they can only be part of a wider and more co-ordinated policy response.
4. The Australian Federal Government needs to work with digital platforms and other stakeholders on better co-regulatory responses, as well as with other governments around the world on developing harmonized policy responses to the challenges of hostile online misinformation.
5. Generative AI and synthetic media are presenting new challenges, but the issue is less about the 'AI-ness' of online content as much as it is around the propensity of particular users to accept fabricated online content if it aligns with pre-existing political and other beliefs, values and opinions.
6. It is important for governments to actively support trusted sources of information, and to ensure that the existing news media ecosystem and professional news practices are not swamped by low-cost synthetic media content distributed by malign actors.

Contact

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<https://www.sydney.edu.au/arts/our-research/centres-institutes-and-groups/centre-for-ai-trust-and-governance.html>

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THE UNIVERSITY OF
SYDNEY



Royal Commission on Antisemitism and Social Cohesion

5 June 2026

Professor Terry Flew

By email: [REDACTED]

Dear Professor Flew

Royal Commission on Antisemitism and Social Cohesion – Request for expert assistance

Thank you for agreeing to provide expert assistance to the Royal Commission on Antisemitism and Social Cohesion.

Background

The Royal Commission was established by the Australian Government on 9 January 2026, following the antisemitic shooting attack at a Chanukah event at Bondi Beach in Sydney, Australia on 14 December 2025. The Royal Commission is an independent inquiry that is being undertaken by the Honourable Virginia Bell AC SC.

A copy of the Letters Patent issued by the Governor-General of Australia establishing the Royal Commission is **enclosed** with this letter. The Letters Patent contain terms of reference which set out the scope of the Commission's inquiry. Each State has issued equivalent documents in largely identical terms as those enclosed with this letter.

Terms of engagement

The Royal Commission seeks to engage you to:

1. Provide an independent expert report to the Royal Commission (**expert report**). The specific questions that the Royal Commission would like you to address, where within your expertise, are at **Annexure A** to this letter.
2. Attend a hearing of the Royal Commission, between 29 June to 10 July 2026, to give oral evidence in relation to the matters in your expert report. Attendance at hearings by audio-visual link may be facilitated.

You will be paid an agreed fee for expert work for your preparation of the expert report and attendance at hearings. To the extent applicable, you will also be paid a reasonable sum for the expenses associated with your attendance at hearings.

Your obligations as an independent expert

The Royal Commission requires that your expert report be prepared in a manner consistent with the Harmonised Expert Witness Code of Conduct contained in Annexure A to the Expert Evidence Practice Note (GPN-EXPT) of the Federal Court of Australia (**Code of Conduct**).¹ A copy of the Code of Conduct is **enclosed** with this letter.

We draw your attention to paragraphs 2 and 3 of the Code of Conduct in relation to your general duties as an expert and the requirements as to the content of your expert report. Where the Code of Conduct refers to the 'Court', you should take that for present purposes

¹ https://www.fedcourt.gov.au/law-and-practice/practice-documents/practice-notes/gpn-expt#_ftnref2.

to be a reference to the 'Commission'. Please read the Code of Conduct carefully and include in your expert report an acknowledgement that you have read it and agreed to be bound by it.

Your Rate

We would be grateful if you could kindly indicate your rate, in Australian dollars, for work associated with this report. Please provide us with an estimate of how many hours you will require to complete this report.

Commission staff will then seek to obtain the necessary approvals in relation to that estimate and will be in touch with further in relation to any difficulties.

If you are likely to exceed that estimate, we ask that you kindly advise the Commission before that occurs and provide any further estimate of the further work required.

Conclusion

I ask that you kindly provide a draft of your report by **19 June 2026**, together with an indication of any unavailable days between 29 June and 10 June 2026.

Please let us know by return email if you accept the terms of this letter.

Please do not hesitate to contact [REDACTED] at [REDACTED] or me on the details below if you would like to discuss this matter or have any queries

Yours sincerely

[REDACTED]

[REDACTED]

Solicitor Assisting

Telephone: [REDACTED]

Mobile: [REDACTED]

Email: [REDACTED]

ANNEXURE A: QUESTIONS TO BE ADDRESSED IN EXPERT REPORT

Background

1. Provide a summary of your professional and academic experience relevant to your work in digital media, platform governance and communications regulation and your current research (including your work on Mediated Trust).
2. If appropriate, please attach any publications you have previously prepared which assist you in answering the below questions.

Foundational Concepts

3. What is digital platform regulation, and what key issues does it address?
4. What is meant by the “platformisation” of communications?
5. Please provide an overview of “mediated trust”, and why it is significant to digital communication environments.

Platform Moderation & Regulatory Design

6. What are the main models of platform governance for overseeing digital platforms (including, among others, self-regulation, co-regulation and direct state regulation), and what are their key features, advantages and limitations (with a particular focus on the application of those governance strategies to moderation of harmful content online).
7. What operational, structural and technological constraints affect a platform’s ability to moderate harmful content consistently and at scale, and to what extent is timely and effective moderation realistically achievable?
8. In light of these challenges, what considerations should inform the design of regulatory frameworks to best address the proliferation of harmful content online, and what are the strengths and limitations of available regulatory tools?

International Regulatory Models & Effectiveness

9. What international regulatory models and/or legislation governing digital platforms are most effective in addressing proliferation of harmful content online, and why?
10. What lessons can be drawn from those regulatory or legislative frameworks regarding their effectiveness and suitability for the Australian context?
11. What evidence exists on whether such regulatory or legislative frameworks improve platform accountability or reduce harmful content, and how is it measured?

Hostile misinformation

12. What is “hostile misinformation” and how do platform features contribute to the dissemination and amplification of such content?
13. What challenges arise in identifying and responding to hostile misinformation, particularly in contexts involving political speech, free expression or generative AI (**Gen AI**)?
14. What governance approaches are most effective in addressing the spread of hostile misinformation online?

Antisemitic & Harmful Content

15. What specific challenges do platforms face in identifying and moderating antisemitic conduct, and are there particular characteristics of this conduct that make it more or less difficult than other forms of harmful conduct?
16. What are the strengths and limitations of automated moderation tools in this context?
17. What role should human moderators play in addressing nuanced or context-dependent harmful content?
18. What indicators should be used to assess whether moderation systems are effective?

Generative Artificial Intelligence

19. What challenges does Gen AI pose for platform governance, specifically to the dissemination and prevention of harmful content?
20. To what extent are existing regulatory frameworks adequate to address the risks posed by AI-generated content?
21. What regulatory safeguards would assist in minimising the risk of Gen AI facilitating the creation, amplification or dissemination of harmful or antisemitic content?

Annexure A

HARMONISED EXPERT WITNESS CODE OF CONDUCT²

APPLICATION OF CODE

1. This Code of Conduct applies to any expert witness engaged or appointed:
 - (a) to provide an expert's report for use as evidence in proceedings or proposed proceedings; or
 - (b) to give opinion evidence in proceedings or proposed proceedings.

GENERAL DUTIES TO THE COURT

2. An expert witness is not an advocate for a party and has a paramount duty, overriding any duty to the party to the proceedings or other person retaining the expert witness, to assist the Court impartially on matters relevant to the area of expertise of the witness.

CONTENT OF REPORT

3. Every report prepared by an expert witness for use in Court shall clearly state the opinion or opinions of the expert and shall state, specify or provide:
 - (a) the name and address of the expert;
 - (b) an acknowledgment that the expert has read this code and agrees to be bound by it;
 - (c) the qualifications of the expert to prepare the report;
 - (d) the assumptions and material facts on which each opinion expressed in the report is based [a letter of instructions may be annexed];
 - (e) the reasons for and any literature or other materials utilised in support of such opinion;
 - (f) (if applicable) that a particular question, issue or matter falls outside the expert's field of expertise;
 - (g) any examinations, tests or other investigations on which the expert has relied, identifying the person who carried them out and that person's qualifications;
 - (h) the extent to which any opinion which the expert has expressed involves the acceptance of another person's opinion, the identification of that other person and the opinion expressed by that other person;
 - (i) a declaration that the expert has made all the inquiries which the expert believes are desirable and appropriate (save for any matters identified explicitly in the report), and that no matters of significance which the expert regards as relevant have, to the

² Approved by the Council of Chief Justices' Rules Harmonisation Committee

knowledge of the expert, been withheld from the Court;

- (j) any qualifications on an opinion expressed in the report without which the report is or may be incomplete or inaccurate;
- (k) whether any opinion expressed in the report is not a concluded opinion because of insufficient research or insufficient data or for any other reason; and
- (l) where the report is lengthy or complex, a brief summary of the report at the beginning of the report.

SUPPLEMENTARY REPORT FOLLOWING CHANGE OF OPINION

- 4. Where an expert witness has provided to a party (or that party's legal representative) a report for use in Court, and the expert thereafter changes his or her opinion on a material matter, the expert shall forthwith provide to the party (or that party's legal representative) a supplementary report which shall state, specify or provide the information referred to in paragraphs (a), (d), (e), (g), (h), (i), (j), (k) and (l) of clause 3 of this code and, if applicable, paragraph (f) of that clause.
- 5. In any subsequent report (whether prepared in accordance with clause 4 or not) the expert may refer to material contained in the earlier report without repeating it.

DUTY TO COMPLY WITH THE COURT'S DIRECTIONS

- 6. If directed to do so by the Court, an expert witness shall:
 - (a) confer with any other expert witness;
 - (b) provide the Court with a joint-report specifying (as the case requires) matters agreed and matters not agreed and the reasons for the experts not agreeing; and
 - (c) abide in a timely way by any direction of the Court.

CONFERENCE OF EXPERTS

- 7. Each expert witness shall:
 - (a) exercise his or her independent judgment in relation to every conference in which the expert participates pursuant to a direction of the Court and in relation to each report thereafter provided, and shall not act on any instruction or request to withhold or avoid agreement; and
 - (b) endeavour to reach agreement with the other expert witness (or witnesses) on any issue in dispute between them, or failing agreement, endeavour to identify and clarify the basis of disagreement on the issues which are in dispute.